Terms of Service

Baseline effective date: June 2026. The candidate account-deletion backend is not live. The baseline effective date remains unchanged pending legal approval.

1. Acceptance of Terms

Welcome to My Combine.

These Terms of Service ("Terms") govern your access to and use of the My Combine mobile application, website, software, services, content, features, hardware integrations, and related products (collectively, the "Services") provided by My Combine LLC ("My Combine," "we," "us," or "our").

By creating an account, accessing, downloading, installing, or using the Services, you acknowledge that you have read, understood, and agree to be bound by these Terms and our Privacy Policy.

If you do not agree to these Terms, you may not access or use the Services.

My Combine may update, modify, or revise these Terms from time to time. When changes are made, we may update the Effective Date and provide notice as required by applicable law. Your continued use of the Services after any changes become effective constitutes your acceptance of the revised Terms.

These Terms apply to all current and future features, products, services, content, software, hardware integrations, subscriptions, leaderboards, social features, coach tools, verified testing systems, and related offerings made available by My Combine.

2. Eligibility and Age Requirements

You must be at least thirteen (13) years old to create an account or use the Services.

By accessing or using the Services, you represent and warrant that:

- You are at least 13 years of age.
- You have the legal capacity to enter into these Terms.
- All information you provide to My Combine is accurate and current.
- Your use of the Services complies with all applicable laws and regulations.

If you are between the ages of 13 and 18 (or the age of majority in your jurisdiction), you represent that you have reviewed these Terms with a parent or legal guardian and that your parent or legal guardian has consented to your use of the Services.

My Combine reserves the right to suspend, restrict, or terminate any account if we believe a user does not meet the eligibility requirements set forth in these Terms.

The Services are not intended for children under the age of 13. If My Combine becomes aware that personal information has been collected from a child under 13 without appropriate consent, we may take steps to remove such information and terminate the associated account.

3. Medical Disclaimer and No Professional Advice

My Combine is a fitness, training, and athletic performance platform. The Services are provided for informational, educational, and recreational purposes only.

My Combine does not provide medical care, healthcare services, physical therapy, athletic training services, diagnosis, treatment, rehabilitation, or professional medical advice of any kind.

The information, workouts, testing protocols, performance scores, recommendations, training suggestions, metrics, analytics, rankings, and other content made available through the Services are not intended to replace professional medical advice, diagnosis, or treatment.

Always consult a qualified physician or other healthcare professional before beginning any exercise, training, testing, or fitness program, particularly if you have any medical condition, injury, illness, disability, or other health concern.

Do not disregard professional medical advice or delay seeking medical treatment because of information obtained through the Services.

No information provided by My Combine should be interpreted as a guarantee of safety, fitness, health, athletic performance, injury prevention, athletic advancement, recruiting opportunities, scholarship opportunities, competitive success, or any specific outcome.

Your use of the Services is solely at your own risk.

If you believe you may be experiencing a medical emergency, immediately contact emergency services or a qualified healthcare provider.

4. Assumption of Risk and Athletic Activity Waiver

Participation in athletic training, exercise, testing, drills, workouts, sprinting, jumping, agility activities, strength training, conditioning, and other physical activities involves inherent risks that cannot be eliminated, regardless of the level of supervision, equipment, training, or precautions used.

By using the Services, you acknowledge and understand that participation in physical activity may result in:

- Muscle strains and sprains
- Falls and collisions
- Equipment-related injuries
- Heat-related illness
- Cardiovascular events
- Serious bodily injury
- Permanent disability
- Death

You voluntarily choose to participate in all activities associated with the Services and knowingly assume all risks, known and unknown, foreseeable and unforeseeable, associated with such participation.

You are solely responsible for determining whether you are physically capable of participating in any workout, drill, test, training session, or athletic activity presented through the Services.

You are solely responsible for ensuring that:

- You have adequate space to safely perform activities.
- Your training environment is safe and free of hazards.
- Equipment used is properly maintained and suitable for its intended purpose.
- You follow all applicable laws, rules, and safety guidelines.

My Combine does not supervise users and cannot monitor individual training conditions, equipment setup, physical readiness, or environmental factors.

To the fullest extent permitted by law, you release, waive, and discharge My Combine LLC and its owners, officers, employees, contractors, affiliates, licensors, partners, successors, and assigns from any and all claims, liabilities, damages, losses, costs, or expenses arising out of or related to your participation in athletic activities, use of the Services, or reliance upon information provided through the Services.

This assumption of risk applies to current and future Services, including software features, performance testing tools, leaderboards, verified testing programs, Bluetooth devices, timing systems, hardware products, and related offerings provided by My Combine.

5. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, MY COMBINE LLC AND ITS OWNERS, MEMBERS, OFFICERS, EMPLOYEES, CONTRACTORS, AFFILIATES, LICENSORS, PARTNERS, SUCCESSORS, AND ASSIGNS SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES ARISING OUT OF OR RELATED TO YOUR USE OF OR INABILITY TO USE THE SERVICES.

THIS LIMITATION APPLIES REGARDLESS OF THE LEGAL THEORY ASSERTED, INCLUDING CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY, OR OTHERWISE.

WITHOUT LIMITING THE FOREGOING, MY COMBINE SHALL NOT BE LIABLE FOR DAMAGES OR LOSSES RESULTING FROM:

- Athletic participation or training activities
- Personal injury, illness, disability, or death
- User reliance on workout recommendations or performance data
- Errors in timing, measurements, scoring, rankings, or analytics
- Inaccurate or incomplete data
- Device failures or software malfunctions
- Internet outages or service interruptions
- Bluetooth connectivity issues

- Hardware failures or defects
- Loss of data or account information
- Unauthorized account access
- User-generated content
- Third-party products, services, or integrations

The Services are provided on an "AS IS" and "AS AVAILABLE" basis without warranties of any kind, whether express or implied.

To the fullest extent permitted by law, My Combine disclaims all warranties, including but not limited to:

- Merchantability
- Fitness for a particular purpose
- Non-infringement
- Accuracy
- Reliability
- Availability
- Performance results

My Combine does not guarantee that:

- The Services will be uninterrupted or error-free.
- Performance scores will be accurate.
- Workout recommendations will be suitable for every user.
- Users will achieve any particular athletic outcome.
- Hardware integrations will function without interruption.
- Data will always be available or preserved.

In no event shall My Combine LLC's total aggregate liability arising out of or relating to the Services exceed the greater of:

(a) the amount paid by you to My Combine during the twelve (12) months preceding the event giving rise to the claim; or

(b) one hundred U.S. dollars ($100).

Some jurisdictions do not allow certain limitations of liability. In such jurisdictions, portions of this section shall apply only to the maximum extent permitted by law.

6. User Accounts and Account Security

Certain features of the Services require the creation of a user account.

When creating an account, you agree to provide accurate, complete, and current information and to keep such information updated.

You are responsible for maintaining the confidentiality of your login credentials and for all activities that occur under your account.

You agree to:

- Maintain the security of your account credentials.
- Use a strong password where applicable.
- Notify My Combine promptly of any unauthorized access or suspected security breach.
- Log out of shared devices when appropriate.

You may not:

- Share your account with another person.
- Allow another person to access the Services through your account.
- Impersonate another individual or organization.
- Create an account using false or misleading information.

My Combine reserves the right to suspend, restrict, disable, or terminate accounts that violate these Terms or that pose a security, legal, operational, or reputational risk to the Services.

Account Data

My Combine may store and process information associated with your account, including but not limited to:

- Profile information
- Workout history
- Performance results
- Test Day results
- Runner Scores
- Speed, Agility, and Explosiveness scores
- Personal records (PRs)
- Subscription status
- Platform activity

While My Combine uses reasonable measures to protect user data, no system can guarantee complete security. You acknowledge that use of the Services and transmission of information occurs at your own risk.

Account Deletion

You may request deletion of your account in accordance with applicable law and My Combine's policies.

After a valid account-deletion request is processed, My Combine deletes the known account data managed by its active app deletion process and the user's authentication account. We do not retain that account data solely for routine business convenience.

A minimal server-only deletion-safety record containing the account identifier and processing timestamps may remain while authentication deletion and data cleanup are verified and previously issued sign-in tokens expire. The record remains through a two-hour safety margin after authentication absence is first observed and is removed when the required checks are complete. If a step fails, the record remains to block access while cleanup is retried or resolved.

Records outside the active app deletion process, including information subject to a specific legal retention requirement or held in provider backups, may be subject to separate retention rules. An unresolved deletion step may delay completion while it is retried or resolved, but general business convenience is not a reason to keep deleted users' personal account data.

7. Acceptable Use Policy

You agree to use the Services only for lawful purposes and in accordance with these Terms.

You may not use the Services to:

- Violate any applicable law, regulation, or legal obligation.
- Infringe upon the rights of another person or entity.
- Harass, abuse, threaten, intimidate, or harm another user.
- Upload, transmit, or distribute unlawful, fraudulent, defamatory, obscene, or offensive content.
- Impersonate another person, athlete, coach, organization, or representative.
- Provide false performance results or misleading information.
- Manipulate rankings, leaderboards, scores, test results, or platform metrics.
- Attempt to gain unauthorized access to accounts, systems, networks, or data.
- Interfere with the operation, security, or integrity of the Services.
- Introduce malware, viruses, malicious code, bots, scripts, or automated tools that negatively impact the Services.
- Reverse engineer, decompile, disassemble, copy, modify, or create derivative works based on the Services except as expressly permitted by applicable law.
- Use the Services to compete with, duplicate, or commercially exploit My Combine without written authorization.
- Circumvent subscription requirements, payment systems, access controls, or security features.
- Collect, scrape, harvest, or otherwise obtain information from other users without authorization.

User-Generated Content

If My Combine offers leaderboards, profiles, comments, social features, coach tools, team functionality, content sharing, or similar features, users remain solely responsible for any content they create, upload, post, share, or distribute through the Services.

You represent and warrant that any content you submit:

- Is accurate to the best of your knowledge.
- Does not violate the rights of any third party.
- Does not violate any law or regulation.
- Does not contain malicious code or harmful material.

My Combine reserves the right, but is not obligated, to monitor, review, remove, restrict, edit, or disable content that violates these Terms or that My Combine reasonably determines to be inappropriate, harmful, misleading, unlawful, or disruptive.

Enforcement

My Combine may investigate suspected violations of this section and may take any action deemed appropriate, including:

- Content removal
- Account warnings
- Temporary suspensions
- Permanent account termination
- Restricting access to specific features
- Reporting violations to appropriate authorities when required by law

Violation of this Acceptable Use Policy may result in immediate suspension or termination of your access to the Services without prior notice.

8. Intellectual Property Rights

The Services, including all software, technology, content, designs, graphics, text, logos, trademarks, service marks, interfaces, algorithms, scoring systems, training methodologies, workout content, videos, audio, data compilations, and other materials made available by My Combine are owned by or licensed to My Combine LLC and are protected by applicable intellectual property laws.

Ownership

My Combine LLC retains all right, title, and interest in and to the Services and all associated intellectual property rights.

Nothing in these Terms transfers ownership of any intellectual property rights to users.

Except for the limited right to access and use the Services in accordance with these Terms, no license or ownership interest is granted to you.

Trademarks

The My Combine name, logos, branding, slogans, product names, service names, and related marks are the property of My Combine LLC or its licensors.

You may not use, copy, reproduce, distribute, modify, display, or exploit any My Combine trademarks without prior written permission.

Platform Content

All workout content, drill descriptions, testing procedures, performance metrics, scoring systems, rankings, analytics, educational materials, graphics, and related content are protected intellectual property of My Combine LLC or its licensors.

You may not:

- Copy or reproduce platform content for commercial purposes.
- Sell, license, distribute, or republish platform content.
- Create competing products using substantial portions of platform content.
- Remove copyright, trademark, or proprietary notices.

Future Technology and Hardware

Any current or future technology developed by My Combine, including but not limited to:

- Runner Score systems
- Performance scoring methodologies
- Verification systems
- Leaderboard systems
- Training recommendation systems
- Mobile applications
- Bluetooth devices
- Timing remotes
- Timing gate systems
- Hardware products
- Software products

shall remain the exclusive property of My Combine LLC unless otherwise stated in writing.

User Feedback

If you provide suggestions, recommendations, ideas, feedback, comments, or improvement proposals relating to the Services, you grant My Combine LLC a perpetual, irrevocable, worldwide, royalty-free right to use, modify, implement, commercialize, and otherwise exploit such feedback without compensation, attribution, or obligation to you.

Limited License

Subject to these Terms, My Combine grants you a limited, non-exclusive, non-transferable, revocable license to access and use the Services solely for personal, non-commercial use.

This license automatically terminates if you violate these Terms or if your account is suspended or terminated.

9. Subscription Terms, Billing, Renewals, and Cancellations

Certain features of the Services may require the purchase of a paid subscription, membership, premium feature, hardware product, or other paid offering.

Subscription Plans

My Combine may offer free and paid subscription plans, including premium memberships, promotional access, beta testing access, discounted plans, and future subscription products.

Subscription features, benefits, pricing, and availability may change from time to time.

Current pricing and subscription details will be displayed within the Services or through the applicable app marketplace.

Billing and Payment

By purchasing a subscription, you authorize the applicable payment processor, app marketplace, or platform provider to charge your selected payment method for all applicable fees, taxes, renewals, and charges associated with your subscription.

Payments may be processed through third-party providers, including but not limited to Apple, Google, Stripe, or other payment processors.

My Combine does not control third-party payment processing systems and is not responsible for payment processor errors, delays, outages, or failures.

Automatic Renewal

Unless otherwise stated, subscriptions automatically renew at the end of each billing cycle until canceled.

By purchasing a subscription, you authorize recurring charges using your selected payment method.

Renewal charges will occur automatically unless canceled before the renewal date.

Cancellations

You may cancel your subscription at any time through the applicable platform or payment provider.

Cancellation will prevent future renewal charges but will not automatically generate refunds for previously paid subscription periods unless required by applicable law or platform policy.

Following cancellation, access to premium features may continue until the end of the current billing period.

Refunds

Except where required by law or applicable marketplace policies, subscription fees are non-refundable.

Refund requests may be subject to the policies of the payment processor, app marketplace, or platform through which the purchase was made.

Users who purchase subscriptions through Apple, Google, or other third-party marketplaces may be required to request refunds directly through those providers.

Promotional Access and Beta Programs

My Combine may provide free access, discounted access, promotional codes, beta tester access, trial memberships, or other promotional offerings at its sole discretion.

My Combine reserves the right to modify, suspend, revoke, or discontinue promotional programs at any time.

Future Products and Hardware

My Combine may introduce future paid products, hardware devices, software services, verification programs, coaching tools, team services, leaderboards, analytics features, or other premium offerings.

Additional terms may apply to such products and services.

Subscription Changes

My Combine reserves the right to modify pricing, subscription features, benefits, billing structures, or membership offerings at any time.

Where required by applicable law or platform policy, notice of material changes will be provided before such changes take effect.

Continued use of the Services after pricing or subscription changes become effective constitutes acceptance of the updated pricing and subscription terms.

10. Dispute Resolution, Arbitration, Class Action Waiver, and Governing Law

Governing Law

These Terms and any dispute arising out of or relating to the Services shall be governed by and construed in accordance with the laws of the State of Florida, without regard to conflict of law principles.

Informal Resolution

Before initiating formal legal proceedings, you agree to first contact My Combine at team@mycombineapp.com and provide a written description of the dispute.

Both parties agree to make a good-faith effort to resolve the dispute informally before pursuing arbitration or other legal remedies.

Binding Arbitration

Except for disputes that qualify for small claims court or disputes involving intellectual property rights, any controversy, claim, or dispute arising out of or relating to these Terms or the Services shall be resolved exclusively through final and binding arbitration.

Arbitration shall be conducted by a recognized arbitration provider in accordance with its applicable consumer arbitration rules.

The arbitrator shall have exclusive authority to resolve any dispute relating to the interpretation, applicability, enforceability, or formation of these Terms.

The arbitration shall be conducted on an individual basis and not as part of any class, collective, consolidated, or representative proceeding.

The arbitrator may award the same damages and relief that would be available in a court of competent jurisdiction, subject to the limitations set forth in these Terms.

Class Action Waiver

TO THE FULLEST EXTENT PERMITTED BY LAW, YOU AND MY COMBINE AGREE THAT EACH PARTY MAY BRING CLAIMS AGAINST THE OTHER ONLY IN AN INDIVIDUAL CAPACITY.

YOU WAIVE ANY RIGHT TO PARTICIPATE IN:

- Class actions
- Collective actions
- Representative actions
- Consolidated proceedings
- Private attorney general actions

No arbitrator or court may combine claims from multiple users or otherwise preside over any class or representative proceeding.

Small Claims Court

Nothing in this section prevents either party from pursuing qualifying claims in a small claims court of competent jurisdiction.

Intellectual Property Claims

Notwithstanding the foregoing, My Combine may seek injunctive relief, equitable relief, or other remedies in a court of competent jurisdiction to protect its intellectual property rights, confidential information, trademarks, copyrights, trade secrets, or other proprietary interests.

Limitation Period

To the fullest extent permitted by law, any claim arising out of or relating to the Services must be filed within one (1) year after the event giving rise to the claim occurred.

Any claim not brought within that period shall be permanently barred.

Venue

To the extent a dispute is permitted to proceed in court rather than arbitration, you agree that such proceeding shall be brought exclusively in the state or federal courts located within the State of Florida, and you consent to the personal jurisdiction of such courts.

10A. Indemnification

You agree to defend, indemnify, and hold harmless My Combine LLC and its owners, members, officers, employees, contractors, affiliates, licensors, partners, successors, and assigns from and against any and all claims, demands, actions, lawsuits, liabilities, damages, judgments, losses, costs, and expenses, including reasonable attorneys' fees, arising out of or relating to:

- Your use of the Services.

- Your violation of these Terms.
- Your violation of any law, regulation, or third-party right.
- Your participation in workouts, drills, testing, training activities, or athletic events.
- Your user-generated content.
- Your misuse of hardware products, Bluetooth devices, timing systems, or related equipment.
- Your negligence, misconduct, or intentional wrongdoing.

My Combine reserves the right, at its own expense, to assume the exclusive defense and control of any matter otherwise subject to indemnification by you. In such event, you agree to cooperate fully with My Combine in asserting any available defenses.

This indemnification obligation shall survive termination of your account, termination of these Terms, and your use of the Services.

11. Suspension and Termination

My Combine reserves the right to suspend, restrict, disable, or terminate your access to the Services at any time, with or without notice, if we reasonably believe that:

- You have violated these Terms.
- You have violated applicable laws or regulations.
- Your use of the Services presents a security risk.
- Your conduct harms other users, My Combine, or third parties.
- You engage in fraud, abuse, manipulation, or unauthorized use of the Services.
- Continued access would expose My Combine to legal, operational, financial, or reputational risk.

My Combine may also discontinue, modify, suspend, or remove portions of the Services at any time without liability.

Effect of Termination

Upon suspension or termination:

- Your right to access and use the Services immediately ends.
- Access to subscription features may be revoked.
- Certain data associated with your account may become inaccessible.
- My Combine may delete, archive, retain, or remove account information in accordance with these Terms and applicable law.

Termination of an account does not relieve you of obligations incurred before termination, including payment obligations or obligations relating to intellectual property, dispute resolution, limitations of liability, or indemnification.

Survival

The following provisions shall survive termination of your account or these Terms:

- Intellectual Property Rights
- Assumption of Risk
- Medical Disclaimer
- Limitation of Liability
- Indemnification
- Subscription Payment Obligations
- Arbitration and Class Action Waiver
- Governing Law
- Any other provisions that by their nature should survive termination

My Combine shall not be liable to you or any third party for any suspension, restriction, termination, modification, or discontinuation of the Services.

12. Miscellaneous Provisions and Contact Information

Entire Agreement

These Terms, together with the Privacy Policy and any additional terms or policies referenced herein, constitute the entire agreement between you and My Combine regarding the Services and supersede all prior agreements, communications, representations, and understandings relating to the Services.

Severability

If any provision of these Terms is determined to be unlawful, invalid, or unenforceable, that provision shall be enforced to the maximum extent permitted by law, and the remaining provisions shall remain in full force and effect.

Waiver

Failure by My Combine to enforce any provision of these Terms shall not constitute a waiver of that provision or any other provision.

Any waiver must be in writing and signed by an authorized representative of My Combine.

Assignment

You may not assign, transfer, delegate, or sublicense any rights or obligations under these Terms without prior written consent from My Combine.

My Combine may assign or transfer its rights and obligations under these Terms at any time without restriction, including in connection with a merger, acquisition, restructuring, financing, sale of assets, or other corporate transaction.

Electronic Communications

By using the Services, you consent to receive communications from My Combine electronically, including by email, through the application, through the website, or through other electronic means.

You agree that electronic communications satisfy any legal requirement that such communications be provided in writing.

Changes to the Services

My Combine reserves the right to modify, suspend, discontinue, replace, or update any aspect of the Services at any time, including:

- Features
- Functionality
- Workouts
- Performance metrics
- Scoring systems
- Runner Score calculations
- Subscription offerings
- Hardware integrations
- Leaderboards
- Social features
- Verification systems
- Content and design

My Combine shall not be liable for any modification, suspension, or discontinuation of the Services.

No Guarantee of Results

My Combine makes no representations or guarantees regarding:

- Athletic improvement
- Speed gains
- Agility gains
- Explosiveness gains
- Recruiting opportunities
- Scholarship opportunities
- Competitive success
- Health outcomes

- Fitness outcomes
- Performance rankings

Individual results will vary, and use of the Services does not guarantee any specific outcome.

Contact Information

If you have questions regarding these Terms or the Services, you may contact:

My Combine LLC

Email: team@mycombineapp.com

Effective Date

These Terms of Service are effective as of June 2026.